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File No.: EXP202305373

RESOLUTION OF FILE OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On March 8, 2023, a complaint was filed with registration number REGAGE23e00014333841 before the Spanish Agency for Data Protection against TELEFÓNICA MÓVILES ESPAÑA, S.A. with NIF A78923125 (hereinafter, the complained party or TME). The reasons for the complaint are as follows:

The complainant states that a duplicate of the SIM card associated with their mobile number was issued without their consent. They indicate that with the duplicate, control of their number was obtained, and with an iPhone, access was gained to their online banking, emptying the account by making bank transfers abroad and requesting a loan in their name.

After reporting the situation, the telecommunications operator complained about indicated that everything was resolved, but subsequently, a new duplicate of the SIM was issued at the same physical store in the town of Salamanca.

Relevant documentation provided by the complainant:

- Complaint filed with the Civil Guard-Illescas dated November 24, 2022.
- Complaint filed with the National Police-Toledo dated December 6, 2022.
- Details of the transfers made on November 23 and 24, 2022, and December 5, 2022.
- Complaint made to the operator dated December 9, 2022.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on May 3, 2023, as evidenced by the acknowledgment of receipt in the file.

On May 8, 2023, TME requested an extension of the initially granted deadline to respond to the information request, which was granted an additional period of 10 working days.

On June 16, 2023, a response was received by this Agency indicating:

"that it does not appear in their databases that the complainant is the holder of the line in question, nor does it even appear as a person authorized by the company ***EMPRESA.1., the legal entity that owns the line. They understand that there is a lack of active legitimacy to file this complaint, as the person in question is not the holder of the line subject to the complaint."

The complained party has verified that two requests for a SIM card change were made that were not recognized, the first on November 23, 2022, and the second on December 5, 2022, both through the management systems of the physical store Microshop María Auxiliadora, located in the city of Salamanca, without Telefónica having evidence that the established operational procedures were followed for such purposes; specifically, it is not recorded in their systems that the customer identification protocol was followed, only the registration of the request in the name of the company.

THIRD: On June 8, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

After requesting clarification from the complainant, evidence was obtained that the phone number subject to the duplicate SIM is the number ***TELÉFONO.1, whose holder is the entity

***EMPRESA.1. (hereinafter DE) and its beneficiary is the complainant, with a first-degree kinship with

the sole administrator of the aforementioned entity.

This entity signed a contract with the complained party dated June 11, 2021, for the provision of Fusión Empresas services, in which the aforementioned mobile line is included, which was canceled on December 7, 2022.

This entity provides a list of the only interlocutors/authorized persons to carry out procedures with the complained party, among whom the complainant is not included. The following documentation is presented:

- Deeds of ***EMPRESA.1 and ID of its sole administrator.
- Fusión Empresa contract dated June 11, 2021.
- Family Book of the sole administrator.
- Chronology of the events with the following documentation:

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Screenshot of the claimant's 1st SIM card: the service begins to be billed on 20/7/22

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The first request for a SIM card change due to Fraud was made on 24/11/22; the claimant requests the suspension of the line, and the response from the responding party confirms the suspension of the line.

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First report of fraud on 24/11/22.

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Second report of fraud on 6/12/22.

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On 7/12/22, line cancellation without permanence by the responding party.

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On 9/12/22, response from the responding party to this entity after two reports.

Through a diligence, the current operator ***COMPANY.2 of the affected mobile line is identified, and evidence is obtained from them that it was registered under a customer's name from 5/7/2019 until 28/7/2021, at which point it was ported to the operator Movistar. The line appears to have been returned to ***COMPANY.2 on 19/7/2023, but since that date, it has not been assigned to any customer.

The acting inspector has conducted a search on the Movistar website to request a duplicate SIM and has obtained the link with information from 19/1/2021 where the requirements for requesting it are stated "Corporate clients" along with a model of authorization:

"In the case of corporate clients, none of the previous authorizations are valid for carrying out operations in-store. Instead, a physical person who is legally authorized to act on behalf of the corporate entity (representative or valid interlocutor) must always go to the store. The way to guarantee this will be by providing additional documentation that proves it:

- Notarial Power.
- Deed or Registration in the Commercial Registry.

Authorization model.docx"

"For this specific case in which two SIM card changes have occurred, the claimant's lines have been marked from the Fraud Prevention team to prevent any area or end customer from lifting the block without their authorization, which can only be carried out by providing verifiable documentation sent to a mailbox managed directly by this unit.

This information has been conveyed to the SME.

Additionally, contact has been made with the physical store in question to remind them of both the protocol of action to follow in these cases and the security measures that must be implemented

in-store.

Specifically, a series of telephone interviews were conducted with the physical store in question to clarify the facts. Although initially, it was communicated to us that they were not aware of the incident, the store itself, upon running an antivirus on the computer, detected that it contained malware and informed Telefónica of this fact by providing screenshots. A screenshot is provided.

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Immediately, this party conveyed to the distributor the need to eliminate said malware, as well as the need to reset the access credentials to the Telefónica application. Likewise, the store was reminded that, in accordance with the Distribution Contract signed with Telefónica, it must have the technical and security measures stipulated therein.

Otherwise, they were informed that Telefónica could adopt certain sanctionable measures for contractual non-compliance, which could include the application of penalties or the possibility of terminating the distribution contract.

In this regard, and as previously indicated, as a result of the internal investigations carried out, it has been determined that one reason for the two ICC changes from the aforementioned physical store could be that the computer of the employee at the physical store Maria Auxiliadora Shop contained malware through which it is possible that the credentials of the commercial application of Telefónica used in this case, which is for managing corporate clients (legal entities), may have been obtained, which could have allowed the two ICC changes of the line owned by ***COMPANY.1 to be carried out remotely and illicitly.

On this point, the AEPD is informed that this party, as a victim of these events, has filed the corresponding complaint with the state security forces to clarify the reported facts, which are currently under criminal judicial investigation in which the secrecy of their actions has been decreed.

“Regarding the information exchanged with the legal entity holding the affected line, there are two telephone contacts with the company in question, of which there is no recording.

The first one, dated 24 November 2022, in which the client indicates that they do not have a line, and they are informed that there is a request for an ICC change in our systems from the previous day that the client indicates they do not recognize. Therefore, the line is immediately blocked to avoid harm to the client, and upon their verifiable identification, it is recovered.

Subsequently, on 5 December, the client informs Telefónica again that they have lost their line, confirming that there is another request for an ICC change from the same date. The client indicates they do not recognize it, but on this occasion decides not to recover their line, and therefore it is canceled at the client's request.”

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of the Law

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Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), grants competence to resolve these investigative actions to the Director of the Spanish Agency for the Protection of Data.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency

for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures in a subsidiary manner.”

II

Legality of Processing

Article 6 of the GDPR details in its paragraph 1 the circumstances under which the processing of third-party data is considered lawful:

“1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

III

Statements of the Respondent

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In the present case, the complainant submits a complaint against the respondent for an alleged violation of Article 6 of the GDPR regarding the legality of processing their personal data because their personal data has been used without their consent to obtain two duplicates of their SIM card.

In response to the transfer and information actions carried out, a written statement from the respondent dated June 16, 2023, has been received by this Agency, in which, for the purposes relevant here, TME states: “it does not appear in its databases that the complainant is the holder of the line in question, nor does it even appear as an authorized person by the company ***EMPRESA.1., a legal entity that holds the line.”

IV

Conclusion

In the present case, once the reasons presented by the respondent, which are in the file, have been analyzed, it has been confirmed that the complainant is not the holder of the telephone line; the ownership corresponds to a legal entity.

Article 1.1 of the GDPR states:

“1. This Regulation establishes rules relating to the protection of individuals with regard to the processing of personal data and rules relating to the free movement of such data.”

And, Recital 14 of the GDPR states: “The protection granted by this Regulation should apply to natural persons, regardless of their nationality or place of residence, in relation to the processing of their personal data. This Regulation does not apply to the processing of personal data concerning legal persons and in particular to companies constituted as legal persons, including the name and form of the legal person and its contact details.”

The judgment of March 19, 2014 (SP-SET/759065) from the Contentious-Administrative Chamber of

the National Court indicates that “we are dealing with a fundamental right, the protection of personal data, which differs from those guaranteed in Article 18.1 of the Constitution, and of which only natural persons are holders, that is, human beings, as recognized both in the LOPD and in the aforementioned Directive 95/46, as well as in International Conventions signed by Spain.”

In this regard, the judgment of May 4, 2023, from the Contentious-Administrative Chamber Section 3 of the Supreme Court, judgment 547/2023, has specified: “Organic Law 3/2018, of December 5, on the Protection of Data and the aforementioned Regulation aim to protect data concerning natural persons, as can be inferred from its wording which expressly refers to natural persons, so it cannot include legal persons within its scope of application, which are excluded from its scope of application.”

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In this case, from the actions taken and the documentation in the file, there is no evidence of an infringing action by the respondent within the jurisdiction of the AEPD, therefore the complaint should be archived.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Consequently, the archiving of the present preliminary investigation actions is warranted as no breach of data protection regulations has been observed, since the established facts do not indicate conduct that falls within the catalog of infringements provided for and sanctioned in said regulations.

Thus, as it has not been possible to attribute responsibility for the processing as indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO ARCHIVE the present actions.

SECOND: TO NOTIFY this resolution to TELEFÓNICA MÓVILES ESPAÑA, S.A. and to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Mar España Martí

Director of the Spanish Agency for Data Protection

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